

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

3. M-CV-0096597 SFC PROMENADE PARK v. DORTON, BRIELE

Stay of Execution

Appearances of the parties are required at the hearing.

4. S-CV-0043042 BLANCO, ENEDINA v. LAZZARESCHI, RICHARD

Petition for Approval of Minor's Compromise Claim (Ayanna De La Torre-Herrera)

Petitioner's petition for approval of minor's compromise claim is denied without prejudice. Petitioner requests the court to approve attorney's fees in the amount of 36.5% of minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery.

5. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CENTER

Defendant Professional Security Consultant Motion for Leave to File Cross-Complaint

Defendants seek leave of court to file a cross-complaint. On April 30, 2026, the court continued the matter to allow defendant to file a supplemental declaration that attaches its proposed cross-complaint for the court's consideration. On May 7, 2026, defendant's attorney of record, Cynthia Lawrence, filed a supplemental declaration that attaches defendant's proposed cross complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Indemnity; (2) Equitable Contribution; and (3) Declaratory Relief—all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendant acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted.